**AGENDA ITEM NO. 7A**

**DATE:** February 18, 2026

**TO:** Planning Commission

**FROM:** Oscar Martinez, Planning Manager

**SUBJECT:** Hillside Overlay District and State Housing Legislation – Information/Workshop

Receive information/workshop regarding Hillside Overlay District and State housing legislation.

This informational item is intended to provide information regarding the Hillside Overlay District, Hillside review processes, and recently passed state housing legislation as it applies to residential developments in the overlay.

## HISTORY OF THE OVERLAY

The Hillside and Local Coastal Overlay Zone, more commonly known as the Hillside Overlay District, was adopted in 1977 and was intended to provide special protections for properties in areas that have unique topography and deserve special consideration in terms of View, Light, Air and Privacy. In addition, the overlay provides guidelines for development in the Coastal Zone, which applies to properties west of Palos Verdes Boulevard. All properties west of Palos Verdes Boulevard fall within the Coastal Zone but not all fall within the Hillside Overlay District.

The original ordinance has evolved from a loose set of guidelines to the current process that provides standards, review criteria, and limitations for hillside and coastal zone developments for residential and commercial developments.

The Hillside Overlay District functions as an overlay of the underlying zones and the development standards of the underlying zone still apply:

91.41.1 HILLSIDE AND COASTAL ZONE.

a) The Hillside and Local Coastal Overlay Zone shall consist of the area designated in the maps attached following this Article, marked Exhibits A, B and C to this section, which are incorporated in this Code by this reference.
b) The provisions of this Article shall apply to all properties within the Overlay Zone in addition to the requirements of the underlying zone, except as provided in this Article. No permits shall be issued for development in the Hillside and Coastal Zone unless the requirements of this Article have been met.

91.41.2 APPLICATION OF PREEXISTING ZONE.
Nothing contained in this Article shall be deemed to repeal any provision of this Code, and the requirements of all preexisting zones in existence in the area encompassed by this Overlay Zone shall be and remain in full force and effect in addition to the requirements of the Overlay Zone, except that the requirements of the Overlay Zone shall be applied where the requirements and standards contained therein are more restrictive than those of the preexisting underlying zones.

For reference, the Overlay contains the following underlying zoning districts: A-1 Light Agricultural, R-1 Single Family Residential, R-3 Limited Multiple Family, R-4 Unlimited Multiple Family, C-1 Retail Commercial, C-2 General Commercial, C-3 Solely Commercial, C-5 Conditional Commercial, P-U Public Use, P-1 Open Area-Planting-Parking, and HBCSP-WT Sub District. Exhibits A, B, and C referenced in TMC91.41.1(a) are provided in Attachment 1.

*Amendments*

As previously mentioned, the original ordinance has evolved and has been amended over time. The last amendment was adopted by City Council in 2000 via Ordinance No. 3477 to its current form.

The last amendment adopted by the City Council under Ordinance No. 3477 deleted hardship language formerly found in subsection “e” of the Torrance Municipal Code (TMC) Section 91.41.6(e) from the Planning and Design section. As the Hillside Overlay already included provisions for approving a Waiver under TMC Section 94.2.1, the intent was modifying the language as it was misplaced and not necessary for approval of a precise plan. If an applicant believes there are unreasonable difficulties from the strict enforcement of the code, applicants could apply for a Waiver per TMC Section 94.2.1.

## REVIEW PROCESS

Projects in the Overlay are reviewed by Planning Staff to determine which type of process is required.

The process varies from a ministerial permit (by right permit), such as an over-the-counter permit for a re-roof, to a discretionary process that could involve administrative approval or a hearing for those projects that involve building envelope expansions or new structures that do not involve an ADU. A review process flowchart is provided as Attachment 2.

The following table provides examples of requests and processes:

| Type of Request | Process |
|---|---|
| Replacement of water heater, air conditioner, heater, re-roof, interior remodels involving no additional area and no new exterior openings | Building Permit |

| | |
|---|---|
| Fences and block walls | Building Permit |
| In-ground swimming pools, solar panels | Building Permit |
| Accessory Dwelling Units/SB9 Units | Building Permit* |
| Retaining walls up to 5ft in height | Minor Hillside Exemption |
| New windows/doors or enlarging exterior openings | Minor Hillside Exemption |
| One story additions, patio covers, detached accessory structures (below 14-feet in height) | Minor Hillside Exemption |
| One-story additions over 14 feet in height, two-story additions or new two-story residence; | Precise Plan |
| Additions/residences resulting in a Floor Area Ratio >0.50 | Precise Plan |

*Mandated by several California Legislative Actions

As listed on the table above, interior modifications, maintenance/minor repairs, replacement, in-ground swimming pools/spas, and solar panels are reviewed through the building permit process for compliance with building code and setbacks, if applicable. Prior to the issuance of a building permit for a fence, planning staff performs a site inspection for potential view impacts. If no issues are found the permit is issued, if there are potential view impacts, the applicant is referred to proceed with a Minor Hillside Exemption.

**Minor Hillside Exemption (MHE)**

In order to determine that a project will not result in an adverse impact and that the project does not result in significant public controversy, requests involving one-story additions under 14-feet in height and resulting in a Floor Area Ratio less than 0.50 can proceed through the Minor Hillside Exemption (MHE) process. Pools with above ground water features, such as slides or waterfalls, can proceed through this process as well.

The process involves the following:

1) Applicants submit two sets of plans, including an electronic copy, for review by Planning Staff for compliance with development standards such as setbacks, heights, required parking, etc.;
2) Staff prepares a letter with a project description to registered property owners potentially affected properties and allows 10 days for a response;
3) If no response is received, staff issues the MHE and allows applicants to submit to Building and Safety for plan check.

If a response is received indicating impacts to view, light, air, or privacy, staff coordinates meetings to assess potential impacts from the subject property and the concerned neighbor(s). Once the assessment is made, staff prepares a staff report for approval, approval with conditions, or denial for the Community Development Director's signature. The Community Development Director's decision can be appealed to the Planning Commission and ultimately to the City Council.

**Precise Plan of Development (PRE)**
Projects involving the construction of a new two-story residence, second-story additions, one-story additions greater than 14-feet in height, FAR greater than 0.50, or request for a roof deck require approval of a Precise Plan of Development by the Planning Commission (or City Council on appeal).

In order to approve a Precise Plan, the following findings (TMC Section 91.41.6) must be made for all Precise Plan approvals:

a) The proposed development will not have an adverse impact upon the view, light, air and privacy of other properties in the vicinity;
b) The development has been located, planned and designed so as to cause the least intrusion on the views, light, air and privacy of other properties in the vicinity;
c) The design provides an orderly and attractive development in harmony with other properties in the vicinity;
d) The design will not have a harmful impact upon the land values and investment of other properties in the vicinity;
e) Granting such application would not be materially detrimental to the public welfare and to other properties in the vicinity;
f) The proposed development will not cause or result in an adverse cumulative impact on other properties in the vicinity.

For Precise Plan projects involving increases in height, the following findings (TMC Section 91.41.10) must be made for those associated Precise Plan approvals:

a) It is not feasible to increase the size of or rearrange the space within the existing building or structure for the purposes intended except by increasing the height;
b) If such lack of feasibility is proved:
    1) Denial of such application would result in an unreasonable hardship to the applicant; and
    2) Granting the application would not be materially detrimental to the public welfare and to other properties

In addition, approval of a floor area ratio greater than 0.50, requires the following findings (TMC Section 91.41.11) to be made:

a) No remodeling or enlargement shall be made to any building or structure, except for commercial uses in a commercial zone, which remodeling or addition increases the net interior floor area of the building or structure so that it exceeds fifty percent (50%) of the number of square feet in the lot or parcel of land upon which the building or structure is located unless the Planning Commission (or the City Council on appeal) shall find that:
    1) Denial of such application would constitute an unreasonable hardship to the applicant; and
    2) Granting of such application would not be materially detrimental to the public welfare, and to other property in the vicinity.

Findings are made based on property constraints such as slope, lot size, lot width, topography, etc.

**Evaluating Projects**

As the overlay stretches across the southern and western portions of the City, there are several factors for consideration, and each project must be analyzed on its own merit. For instance, when an application for a PRE for a new two-story residence is received, staff verify that the proposed residence complies with the development standards of the underlying Zone (most commonly R-1) for heights, setbacks, lot coverage, floor area ratio, etc. Staff further verify the proposed structure, heights, and roof design with the silhouette certification and site visit/s. Staff walks the site and tries to make contact with adjacent neighbors and leaves business cards if no contact was made.

If contact is made and objections are received, staff requests a written statement from the objecting neighbor indicating their concerns. Staff coordinates site visits and informs the project applicant of the objections and strongly encourages them to make contact and try to resolve the concerns prior to the hearing. Most applicants, but not all, make contact to try and resolve the concerns prior to the hearing.

When assessing potential impacts, at least two Planning Staff members visit the site and take photographs without the use of a zoom lens, from the objecting neighbor's areas of concern as well as the project site and take into consideration existing physical conditions. Staff evaluates and assesses if the potential impacts are substantially adverse. If so, staff notifies the applicant and discusses design changes that could help address the impacts. If the applicant chooses not to make changes, staff will not recommend approval of the project to the Planning Commission and informs the applicant. If significant changes are made, staff requires revised plans and silhouette certification for review, and coordinates site visits with the concerned neighbors to re-evaluate potential impacts.

**Substantially Adverse Impacts**

Not all impacts are considered substantially adverse. Since establishing the Hillside Overlay Ordinance in 1977, the most notable project that has been litigated related to the Ordinance has been *Youngern v. City of Torrance*. In that case, the Court ruled that the only reasonable interpretation of "adverse impact" is "substantial impact" otherwise it would preclude all development. That decision further noted that every development has an impact to the view, light, air and privacy of surrounding properties, and furthermore, that front yards are within the public realm and do not enjoy a reasonable expectation of privacy.

Historically, substantial adverse impacts related to views have been those that block whitewater/sand views, significant portions of blue water ocean, queen's necklace, mountain views, sunset or sunrise views; pastoral views towards the Palos Verdes Peninsula; city light views towards several regional areas, such as the port or downtown LA, from the different hillside neighborhoods, etc. Furthermore, the Planning Commission, and City Council on appeal, have typically prioritized views from within original and/or

unmodified homes as opposed to acquired views from homes that have been through the Overlay process. These views are typically those located from within homes that have not been modified under the provisions of the Hillside Overlay Ordinance such as those from a single-story residence or from a second story constructed before 1977.

Substantial adverse impacts to privacy on neighboring properties could arise where window or balcony placement creates direct lines of sight into the interior of adjacent residences or their private rear yards, as well as from other detached elevated structures, including cantilevered decks or elevated areas formed by a series of retaining walls.

Substantial adverse impacts to light and air of surrounding properties could arise due to the height of a proposed residence, orientation and/or different pad height elevation of lots as they ascend or descend along the street. Depending on the topography of the neighborhood and the placement of existing and proposed structures (i.e., setbacks), a proposed project may create substantial adverse impacts to light towards an adjacent property by casting considerable shadows over the property. Similarly, substantial adverse impacts to air could result from a proposed project's height and setbacks, or placement of a second story, blocking the air flow of an adjacent residence or residences.

## STATE HOUSING LEGISLATION

Recent housing legislation has impacted how local jurisdictions are required to process, review, and approve residential development projects. It has also given additional authority to the Attorney General to levy fines on cities if found to be in violation and the violation is not corrected. For certain types of qualifying residential projects, review times have been streamlined and are required to be reviewed within a limited number of days or the project is considered approved.

Legislation related to Accessory Dwelling Units and Junior Accessory Dwelling Units (ADUs/JADUs) has mandated that review and approval be completed ministerially and without a discretionary review process citywide, including the Overlay.

The following information is an overview of housing legislation and how it relates to the review and approval of certain residential projects within the Overlay. Additional information and research may be required under certain circumstances.

### ADUs/JADUs

Originally called "granny flats" or "second residential dwelling units," since 2016 the State has amended and revised the law to update the terminology to its current form and required that local jurisdictions review and approve them ministerially within a streamlined time frame. Recent amendments to the laws have revised parking requirements, and clarified that they cannot be used as short-term rentals, as well as limit permit and impact fees collected by cities.

Recent updates by the State have further clarified that local agencies must approve any of the following, or combination of one ADU and one JADU within a single-family

residence or accessory structure; one detached, new construction unit up to 800sf and 16ft in height with four-foot side and rear setbacks. Torrance does retain local control of development standards for ADUs that exceed 800sf and follow the City's ADU/JADU code such as maximum area/size, material finishes, setbacks, heights, FAR, etc. Within the Overlay, a two-story ADU is only allowed if attached to the primary residence, detached two-story ADUs are not permitted.

**SB9: TWO UNIT PROJECTS AND URBAN LOT SPLITS**

Effective January 1, 2022, SB9 requires ministerial approval of a housing development with no more than two primary units (minimum 800sf in size each) in a single-family zone, the subdivision of a parcel in a single-family zone into two parcels, or both. The City Council adopted development standards in late 2021 that established objective development standards, ministerial review process, and notification requirements for these projects citywide.

Torrance was one of five charter cities that challenged SB9, and in April 2024, the Los Angeles Superior Court ruled that SB9 did not apply to charter cities. Although the challenge was successful, SB450 (effective January 1, 2025) amends SB9 to apply to all local jurisdictions, including charter cities, as well as further restricts denial of these projects.

Under SB450, cities may "not impose objective zoning standards, objective subdivision standards, and objective design standards that would have the effect of physically precluding the construction of up to two units or that would physically preclude either of the two units from being at least 800 square feet in floor area." Furthermore, cities "shall not impose objective zoning standards, objective subdivision standards, and objective design standards that do not apply uniformly to development within the underlying zone. This subdivision shall not prevent a local agency from adopting or imposing objective zoning standards, objective subdivision standards, and objective design standards on development authorized by this section if those standards are more permissive than applicable standards within the underlying zone."

As previously stated, the Hillside Overlay District acts as an overlay of the underlying zones and the development standards of the underlying zone apply.

**HOUSING ACCOUNTABILITY ACT (HAA)**

In effect since 1982, the HAA was intended to limit local governments' ability to deny, make it infeasible, or reduce the density of housing development projects. In recent years, the State has amended the HAA to strengthen its provisions and limit a local agency's ability to deny or reduce the density of a proposed housing development unless the project does not comply with objective development and design standards in place at the time of application. The HAA has also been strengthened to levy fines, up to $10,000 per housing unit or minimum of $50,000, on jurisdictions that are found to be in violation of the HAA and fail to correct the issue after a warning from the Attorney General.

The HAA defines objective standards as standards involving no personal or subjective judgment by a public official and being uniformly verifiable by reference to an external and uniform benchmark or criterion available and knowable by both the development applicant or proponent and the public official. For instance, a setback requirement of 5ft from side property line, a maximum height of 27ft, or specific lot dimensions, would be considered objective as they are clear, measurable, and involve no personal judgement. Subjective standards such as keeping in character with the neighborhood or ensuring that the project is in scale and harmony cannot be used to deny a housing development project. As such, the design guidelines and findings contained within TMC91.41.6, TMC91.41.10, and TMC91.41.11 (see section regarding PRE) are subjective and cannot be used to deny a housing development project. Denial of a housing development project would have to be because it has a specific, adverse impact upon the public health or safety unless the project is disapproved or approved upon the condition that the project be developed at a lower density. A “specific, adverse impact” means a significant, quantifiable, direct, and unavoidable impact, based on objective, identified written public health or safety standards, policies, or conditions as they existed on the date the application was deemed complete.

The HAA defines a housing development project as a use consisting of residential units only, mixed use developments consisting of residential and non-residential uses with at least two-thirds of the square footage designated for residential use, or transitional or supportive housing. Because the term “units” is plural, a development must consist of more than one unit to qualify under the HAA. This includes an application involving a single-family residence and an ADU because more than one unit is contained in the application.

**HOUSING CRISIS ACT OF 2019 (HCA)**

The HCA, effective from January 1, 2020, to January 1, 2030, was designed to allow project proponents of a qualifying residential development “vest” or “lock-in” development standards and fees, at time of preliminary application. The HCA also shortened review times and limits the number of hearings to a maximum of five for projects submitted under this process.

To further ensure certainty to residential project proponents, the HCA also restricts local jurisdictions from downzoning or placing moratoriums on housing. Under the HCA, changes to the general plan land use designation or zoning to a less intensive use or reducing intensity of land use below what was allowed in effect on January 1, 2018, is not allowed. For example, a reduction to maximum floor area ratios and lot coverage requirements, lowering height limits, increasing setbacks or landscape requirements reduce the intensity of land use.

For additional context, the City of Culver City passed an ordinance in 2020 that reduced the allowable FAR for primary residences in the R-1 Zone from 0.60 to 0.45, decreasing the square footage that could be built on a lot. The ordinance was challenged and the court ruled that the ordinance violated the HCA as it reduced the intensity of land use (*Yes in My Back Yard v. City of Culver City,* 2023).

## CONCLUSION

In closing, recent housing legislation has changed how certain types of residential projects are reviewed in the Overlay. Projects may still be subject to the Overlay but if they are considered a qualifying housing development, the subjective findings in the Overlay cannot be used to deny or reduce the density of the project if the objective standards of the underlaying zone are complied with.

The Overlay still applies to an individual single-family unit is proposed or proposed to be enlarged and expanded, as well as to projects that do not propose a residential component.

## ATTACHMENTS

1. TMC Section 91.41 (Hillside and Local Coastal Overlay Zone)
2. Hillside Overlay Flowchart

**ITEM 7A**
ATTACHMENT 1

TMC Section 91.41 (Hillside and Local Coastal Overlay Zone)



**ITEM 7A**
ATTACHMENT 1

## ARTICLE 41 - R-H HILLSIDE AND LOCAL COASTAL OVERLAY ZONE

(Added by O-2747; Amended by O-2760; O-2961; O-2982; O-3027; O-3110, O-3126, O-3144)

### 91.41.1 HILLSIDE AND COASTAL ZONE.

a) The Hillside and Local Coastal Overlay Zone shall consist of the area designated in the maps attached following this Article, marked Exhibits A, B and C to this section, which are incorporated in this Code by this reference.

b) The provisions of this Article shall apply to all properties within the Overlay Zone in addition to the requirements of the underlying zone, except as provided in this Article. No permits shall be issued for development in the Hillside and Coastal Zone unless the requirements of this Article have been met.

### 91.41.2 APPLICATION OF PREEXISTING ZONE.

Nothing contained in this Article shall be deemed to repeal any provision of this Code, and the requirements of all preexisting zones in existence in the area encompassed by this Overlay Zone shall be and remain in full force and effect in addition to the requirements of the Overlay Zone, except that the requirements of the Overlay Zone shall be applied where the requirements and standards contained therein are more restrictive than those of the preexisting underlying zones.

### 91.41.3 LOT DIMENSIONS.

(Amended by O-3283)

Residential lots within the Overlay Zone shall provide a minimum lot width of fifty (50) feet for interior lots or sixty (60) feet for exterior lots, plus one (1) foot for each one percent (1%) slope in excess of fifteen percent (15%) based on existing grade or finished grade, whichever is more restrictive.

### 91.41.4 PUBLIC HEARING.

a) Upon receipt of the complete application, the Planning Director shall set a date, time and place for a public hearing thereon as soon as practicable and shall send notice thereof to the owners of land included within a three hundred (300) foot radius of the exterior boundaries of the land for which the permit is sought as shown on the last equalized assessment roll. The Planning Commission may conduct said hearing in an informal manner. The rules of evidence shall not apply. The hearing may be adjourned to a future time at the discretion of the Planning Commission without the giving of further notice, other than announcement by the Commission of the date, time and place of such adjourned meeting at the time of said adjournment.

b) The applicant shall have the burden of proving that all the requirements of this Article have been met.

c) The Planning Commission may consider all measures which are proposed by the project proponents to be included in the project and other measures that are not included but could reasonably be expected to reduce the adverse impacts of the project, if required as conditions.

**91.41.5 PRECISE PLAN.**

a) Any development on a lot within the Hillside and Coastal Zone shall be subject to approval by the Planning Commission of a Precise Plan in accordance with Chapter 6 of this Division 9, except as provided in Sections 91.41.7, 91.41.8, and 91.41.14 of this Article.

b) Nothing in this chapter shall be construed to permit the restrictions which are less restrictive than established in the this Code, or in the California Coastal Act as to those properties lying westerly of Palos Verdes Boulevard in the Coastal Zone as defined by the California Coastal Act.

c) Nothing in this Article shall be construed to authorize the Planning Commission to impose conditions more restrictive than the express provisions of this Code or the California Coastal Act as to those properties lying westerly of Palos Verdes Boulevard in the Coastal Zone as defined in the California Coastal Act when so doing would render construction on any lot impossible where such construction would be possible in accordance with the Code as written.

d) The requirements, restrictions and conditions of the California Coastal Act, commencing at Section 30000 of the Public Resources Code of the State of California and any implementing regulations authorized by law, are incorporated by this reference as to the properties lying westerly of Palos Verdes Boulevard in the Coastal Zone as defined in the California Coastal Act.

**91.41.6 PLANNING AND DESIGN.**

(Amended by O-3477)

No construction and no remodeling or enlargement of a building or structure shall be permitted unless the Planning Commission (or the City Council on appeal) shall find that the location and size of the building or structure, or the location and size of the remodeled or enlarged portions of the building or structure, have been planned and designed in such a manner as to comply with the following provisions:

a) The proposed development will not have an adverse impact upon the view, light, air and privacy of other properties in the vicinity;

b) The development has been located, planned and designed so as to cause the least intrusion on the views, light, air and privacy of other properties in the vicinity;

c) The design provides an orderly and attractive development in harmony with other properties in the vicinity;

d) The design will not have a harmful impact upon the land values and investment of other properties in the vicinity;

e) Granting such application would not be materially detrimental to the public welfare and to other properties in the vicinity;

f) The proposed development will not cause or result in an adverse cumulative impact on other properties in the vicinity.

**91.41.7 PERMITTED DEVELOPMENT - RESIDENTIAL.**

Notwithstanding the provisions of this Article, no Precise Plan shall be required if the proposed development within the Hillside and Coastal Overlay Zone is for the purpose of constructing, remodeling or enlarging a dwelling, provided the following requirements are met:

a) The net interior area of the completed dwelling, whether it is new construction or remodeled or enlarged, including the area of the garage, whether attached or detached, will not exceed fifty percent (50%) of the area of the lot or parcel on which the dwelling is located;

b) The dwelling (or in the case of remodeling or enlargement, the portion remodeled or enlarged) will be one (1) story; and provided further that no portion of the roof of the dwelling (or in the case of remodeling or enlargement, no portion of the remodeled or enlarged roof) will be used as a deck, sun-deck or patio, nor will any equipment or appurtenances be mounted on the roof or protrude through the roof (except for ordinary plumbing or heater vents) nor extend above the roof eave line; provided further that a chimney will be permitted if the portion extending above the roof eave line is no larger than the minimum dimensions required by the Torrance Building Code.

c) Except as provided in this subsection, no portion of the dwelling, in the case of new construction, will exceed fourteen (14) feet in height, measured from the ground at finished grade, but not including any berm. In the case of remodeling or enlargement, the portion remodeled or enlarged shall not exceed the height of the lowest portion of the remainder of the dwelling, or fourteen (14) feet measured from the ground at finished grade, but not including any berm, whichever is less. In the case of a down-sloping lot, no portion of the dwelling shall exceed fourteen (14) feet in height, measured from the top of the curb at the center point of the front property line. Vents and a chimney, as provided in subsection b) of this section, shall not be considered in the height measurements.

d) The Planning Director has determined that the proposed development will not have an adverse effect on other properties in the vicinity, and there is no significant public controversy thereon.

**91.41.8 PERMITTED DEVELOPMENT - COMMERCIAL.**

Notwithstanding the provisions of this Article, no Precise Plan shall be required if the proposed development within the Hillside and Coastal Overlay zone is for the purpose of constructing, remodeling or enlarging a commercial building, located in a commercial zone, if the following requirements are met:

a) In the case of remodeling or enlargement of a building, the net interior area of the resulting building will not be increased by more than fifty percent (50%) as a result of the remodeling or enlargement;

b) The commercial building (or in the case of remodeling or enlargement, the portion remodeled or enlarged) will be one (1) story; and provided, further, that in the event the commercially zoned lot adjoins any lot used for residential purposes, no portion of the roof (or in the event of remodeling or enlargement, no portion of the remodeled or enlarged roof) will be used as a deck, sun-deck or patio, nor will any equipment or appurtenances be mounted on the roof, protrude

through the roof, or extend above the roof, or extend above the roof eave line (except for ordinary plumbing or heating vents);

c) No portion of the building, in the case of new construction, will exceed fourteen (14) feet in height, measured from the ground at finished grade, but not including any berm. In the case of remodeling or enlargement, the portion remodeled or enlarged shall not exceed fourteen (14) feet in height, measured from finished grade, but not including any berm, or shall not exceed the height of the lowest portion of the remainder of the building, whichever is less. Ordinary plumbing or heating vents, as provided for in subsection b) of this section shall not be considered in the height measurement;

d) The Planning Director has determined that the proposed development will not have an adverse effect on other properties in the vicinity, and there is no significant public controversy thereon.

**91.41.9 DEVELOPMENT STANDARDS.**

a) For slope control:

1) All structures shall have roof drainage directed to the street or other approved drainageways by approved methods;

2) All excavations, paving, hillside and slope earthwork construction, landscaping and grading, including fills and embankments, shall meet building and grading Code requirements;

b) For safety, general welfare, aesthetic control, and to help stabilize land values and investments;

1) Stilt-type structures shall be constructed in such a way that there is no exposure to public view of plumbing, electrical, mechanical equipment, ducts, pipes or other construction appurtenances normally associated with a residential or commercial structure;

2) Swing-in garages and circular driveway are encouraged on wide lots to allow vehicles to enter the public way in a forward manner when such drives are landscaped appropriately;

3) There shall be a level setback of not less than five (5) feet on that portion of a hillside lot between the wall of any structure on such lot and any adjacent slope of greater than 15% of such lot;

4) The proposed development will not result in a substantial change in the physical conditions which exist in the area affected by the proposed project.

**91.41.10 LIMITATION ON INCREASES IN HEIGHT.**

No enlargement in any building or structure, or any remodeling of any building or structure, shall be permitted which causes the height of such building or structure or any part thereof, to be higher than before the remodeling or enlargement, unless the Planning Commission (or City Council on appeal) shall find that:

a) It is not feasible to increase the size of or rearrange the space within the existing building or structure for the purposes intended except by increasing the height;

b) If such lack of feasibility is proved:

1) Denial of such application would result in an unreasonable hardship to the applicant; and

2) Granting the application would not be materially detrimental to the public welfare and to other properties in the vicinity.

**91.41.11 LIMITATION ON INCREASES IN BUILDING SPACE LOT COVERAGE.**

a) No remodeling or enlargement shall be made to any building or structure, except for commercial uses in a commercial zone, which remodeling or addition increases the net interior floor area of the building or structure so that it exceeds fifty percent (50%) of the number of square feet in the lot or parcel of land upon which the building or structure is located unless the Planning Commission (or the City Council on appeal) shall find that:

1) Denial of such application would constitute an unreasonable hardship to the applicant; and

2) Granting of such application would not be materially detrimental to the public welfare, and to other property in the vicinity.

b) For purposes of this section, the term "commercial zone" shall mean any zone in which commercial uses are permitted, or are permitted with a Conditional Use Permit.

**91.41.12 WAIVERS.**

Waivers may be granted pursuant to the provisions of Chapter 4, Article 2, of this Division; provided, however, that the building height requirements of this Article may be changed only pursuant to a Precise Plan. Where both a Waiver and a Precise Plan are necessary, both may be processed as a single matter.

**91.41.13 GUIDELINES FOR REVIEW OF COASTAL DEVELOPMENT.**

a) The following factors, in addition to the California Coastal Act, related State regulations and the other provisions of this Article, shall be considered by the Planning Commission when reviewing any development regardless of zone as to those properties lying westerly of Palos Verdes Boulevard in the Coastal Zone as defined in the California Coastal Act:

1) Multiple-family dwellings should not exceed thirty-five (35) feet above existing grade elevation;

2) Roof signs should not be permitted; and

3) Ground signs should be limited to monument-type signs with a maximum height of eight (8) feet above the front property line.

b) The following factors should be considered during review of any development proposed for the coastal bluffs or adjacent to the sandy beach areas:

1) No improvements will be allowed west of the safe building line established by the Department of Building and Safety for Lots 149 through 164, Tract 18379;

2) No construction will be allowed between the safe building line and the west side of Paseo de la Playa, or on any lots north of Lot 148, Tract 18379, without a soils and geologic investigation being filed with the Department of Building and Safety;

3) No development will be allowed without supporting data showing proof of bluff and supporting soils stability being filed with the Department of Building and Safety;

4) Whether the proposed development impairs access to the beach areas for use by the general public;

5) Whether the proposed development is incompatible with recreational usage by the general public; and

6) Whether the proposed development will result in blockage of coastal views from public rights-of-way.

**91.41.14 EXEMPTIONS.**

a) Unless in the opinion of the Director of Building and Safety, based upon the criteria of Sections 91.41.6, 91.41.9, 91.41.10, 91.41.11 and 91.41.13 of this Article, such improvements may have a significant adverse effect on surrounding properties, the following shall be exempt from review under Section 91.41.9 of this Code, regardless of the valuation of improvements: retaining walls three (3) feet or less in height, interior modifications, maintenance or replacement of existing improvements, fences six (6) feet or less in height, grade walls, architectural appurtenances and nonoccupied areas, including but not limited to, uncovered decks, swimming pools, jacuzzis and open patios and those developments exempted by the California Coastal Act where applicable.

b) The Planning Director may exempt the following from review under Section 91.41.5 of this Article upon determining that there is no significant public controversy thereon unless in the opinion of the Planning Director or the Director of Building and Safety, based upon the criteria of Sections 91.41.6, 91.41.9, 91.41.10, 91.41.11 and 91.41.13 of this Article, the improvements may have a significant adverse effect on such surrounding properties, regardless of the value of such improvements: retaining walls over three (3) feet in height, balconies, patios, covered decks or any other occupied areas or solar panels; and those developments exempted by the California Coastal Act where applicable.

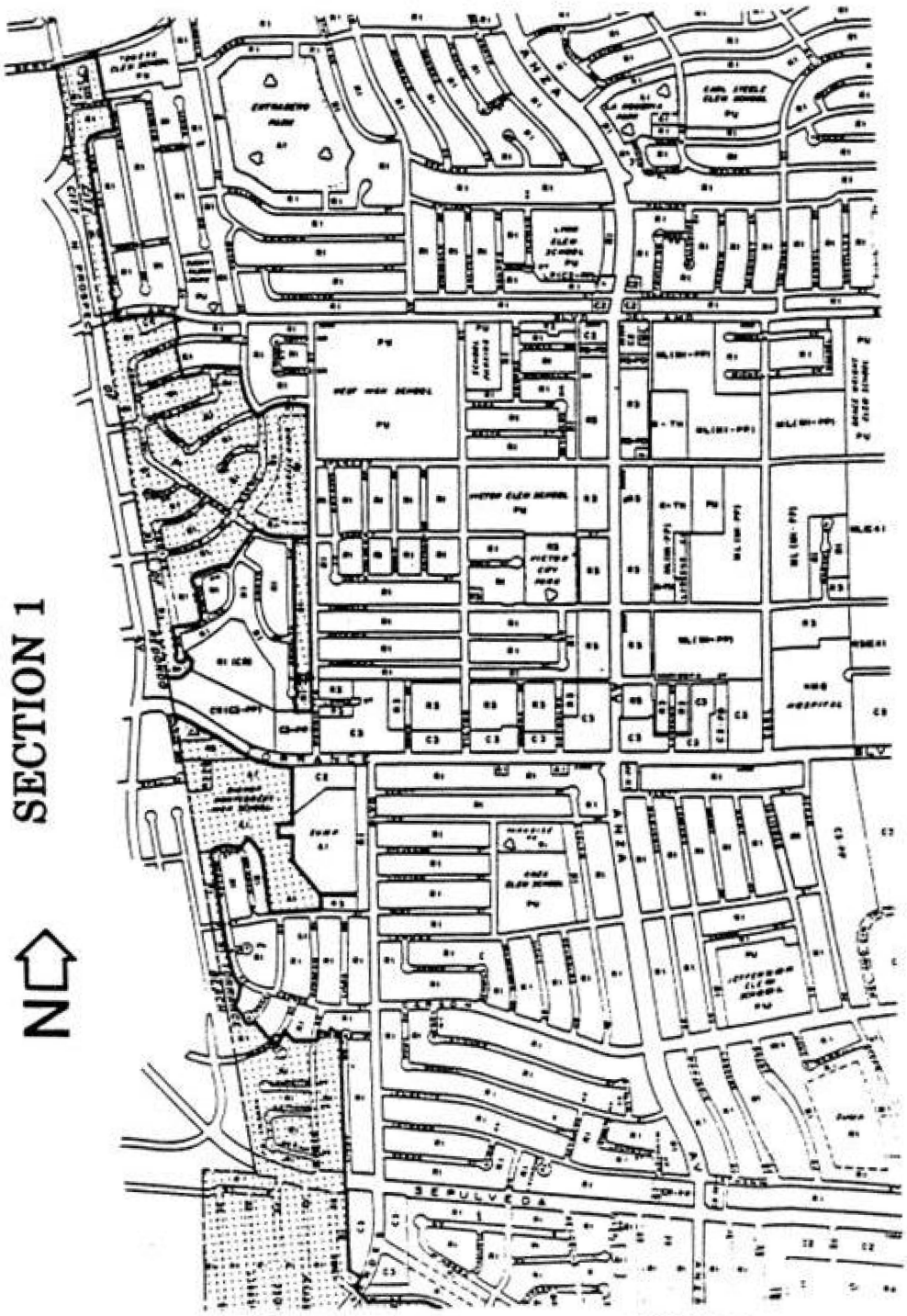
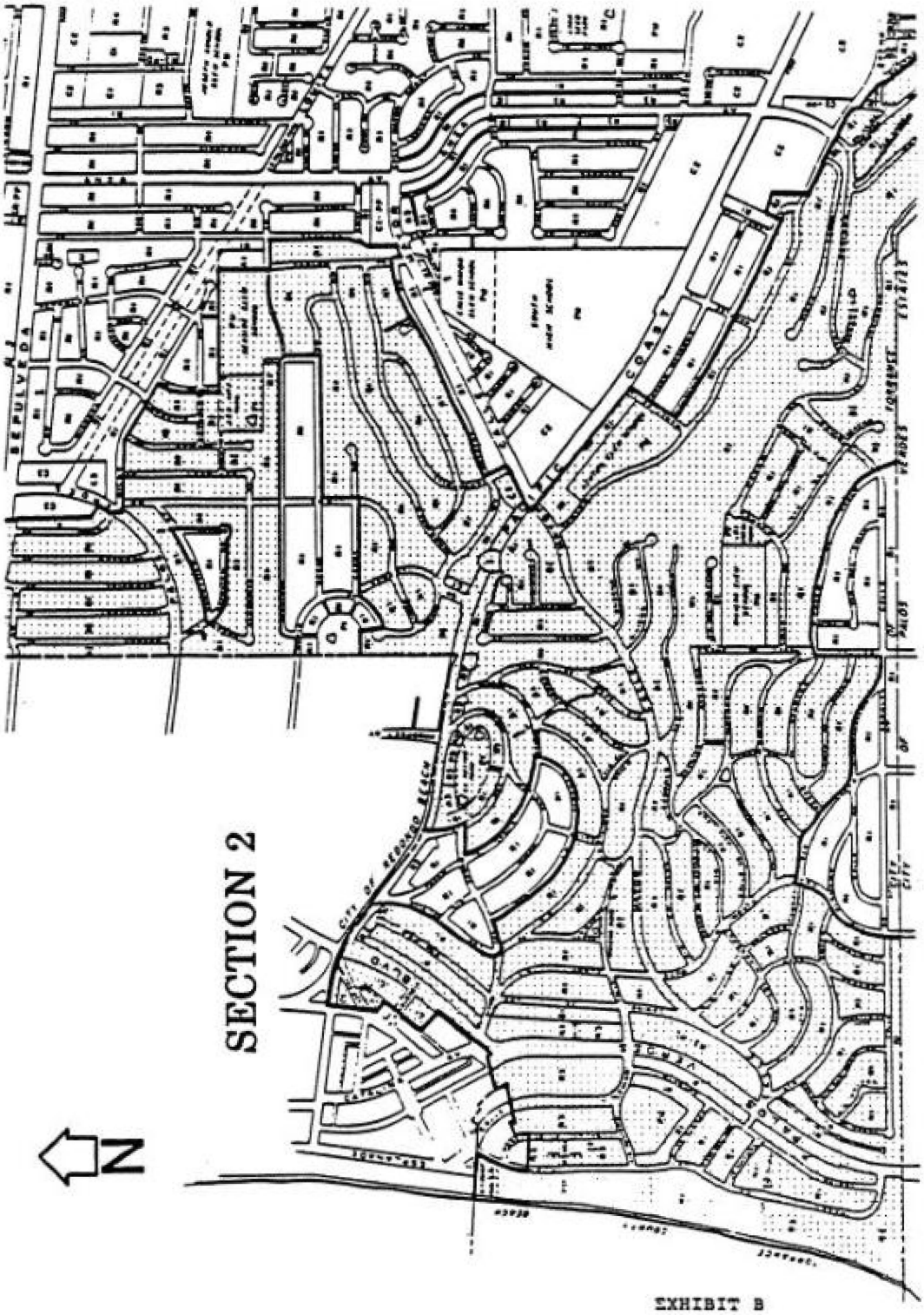
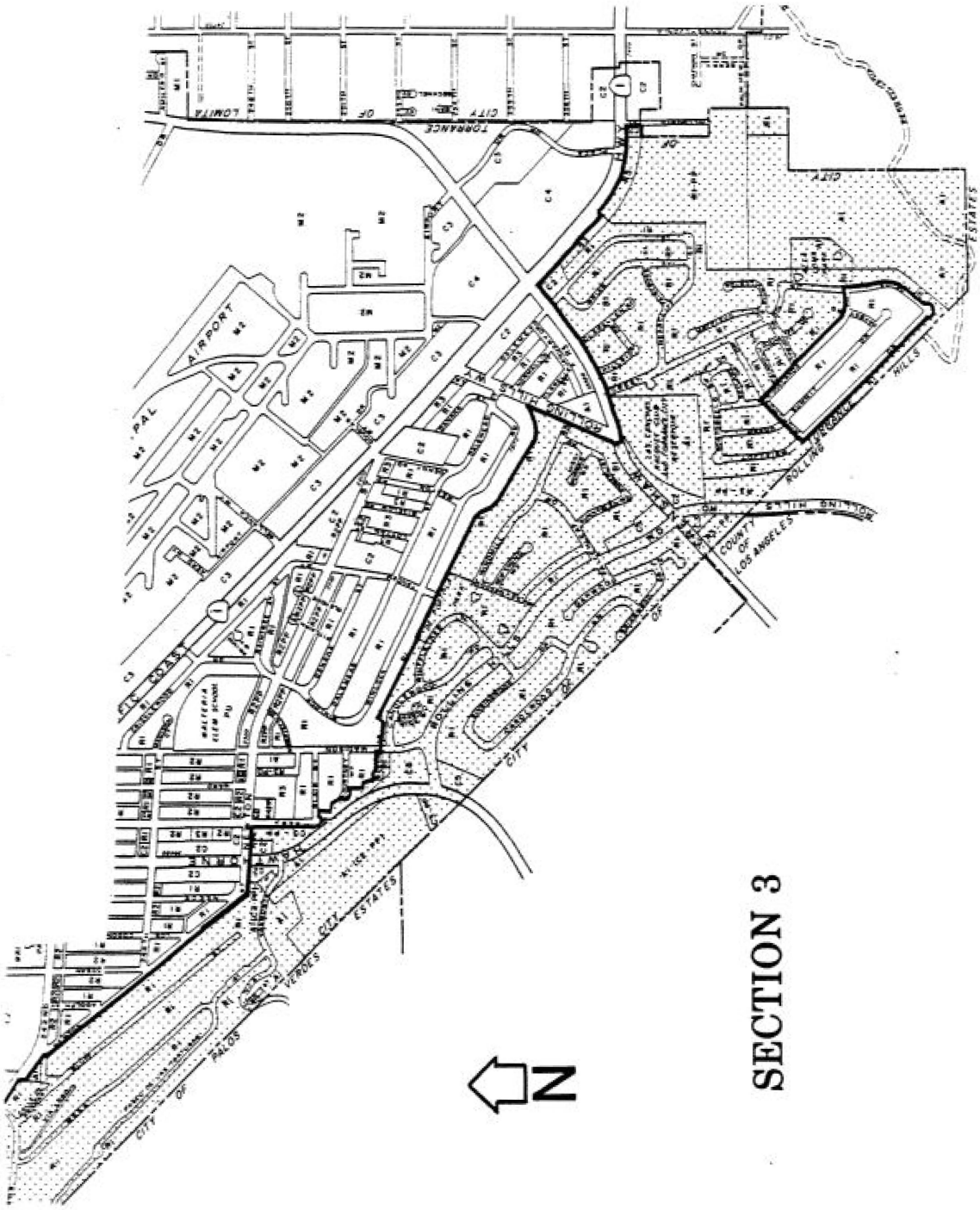



EXHIBIT A


SECTION 2
N
EXHIBIT B


TORRANCE
CITY OF
LOMITA
AIRPORT
CITY
ESTATES
ROLLING HILLS
COUNTY OF LOS ANGELES
PALOS VERDES
CITY OF

N

SECTION 3

**ITEM 7A**
ATTACHMENT 2

Hillside Overlay Flowchart



**ITEM 7A**
ATTACHMENT 2

# Hillside Overlay Flowchart

The flowchart provides an overview of the permitting process for development in the Hillside Overlay.
For more information, contact the Planning Division at (310) 618-5990.

*Is the Project located within the Hillside Overlay?*

No → *Project is not subject to the Hillside Overlay*

Yes → *Projects located in the Coastal Zone may be subject to review by the California Coastal Commission*

## Residential Zone

*Does the Project involve any of the following?*

- Remodeling or enlargement of a residential building, including the area of the garage, where the net interior area will exceed 50% of the lot area?
- Residential structure greater than two stories in height?
- Remodeling or enlargement where the roof will be used as a deck, sun-deck or patio, or have equipment or appurtenances mounted or protruding the roof? (except for ordinary plumbing, heating vents, and chimneys)
- New construction, remodeling or enlargement of a residential structure that exceeds 14 feet in height measured from finished grade, or exceeds the height of the lowest portion of the remainder of the structure? (except for ordinary plumbing, heating vents, and chimneys)
- Have the potential to cause an adverse effect to view, light, air, or privacy of other properties in the vicinity?

## Commercial Zone

*Does the Project involve any of the following?*

- Remodeling or enlargement of a commercial structure where the net interior area will be increased by more than 50%?
- Remodeling or enlargement of a commercial structure at the second floor or above?
- Remodeling or enlargement of a commercial structure that adjoins a residentially zone lot and where the roof will be used as a deck, sun-deck or patio, or have equipment or appurtenances mounted or protruding the roof? (except for ordinary plumbing or heating vents)
- New construction, remodeling or enlargement of a commercial structure that exceeds 14 feet in height measured from finished grade, or exceeds the height of the lowest portion of the remainder of the structure? (except for ordinary plumbing or heating vents)
- Have the potential to cause an adverse effect to view, light, air, or privacy of other properties in the vicinity?

♦ <u>The following are exempt from the Hillside Overlay and only require a Building Permit</u>: replacement of water heater, air conditioner, and heater; plumbing vents and chimneys; re-roof and solar panels; in-ground pools and spas; fences and block walls < 36 inches in height; retaining walls < 30 inches in height subject to Planner discretion; interior remodels involving no additional floor area and no new exterior openings; accessory dwelling units; and SB 9 two-unit projects and urban lot splits.

*Determination made by the Planning Division*

Yes → **Precise Plan of Development**

A silhouette and survey are required to assess the potential impacts to view, light, air, and privacy. Staff conducts a field visit to verify the silhouette and to assess potential impacts, and prepares a staff report. A public hearing is scheduled and notifications are mailed to property owners located within 500 feet of the Project.

Recommendation by the Planning Division for Approval or Denial of the Project

Decision by the Planning Commission for Approval or Denial of the Project

Decision may be appealed within 15 days to the City Council for consideration

Final Decision by the City Council for Approval or Denial of the Project

No → *Building Permit* ♦

**Minor Hillside Exemption**

Notifications are mailed to property owners located near to the Project and given 10 days to assess the potential impacts to view, light, air, and privacy. <u>If no response is received within 10 days, the Project is approved</u>. If response is received, staff conducts a field visit to assess potential impacts and prepares a staff report.

Recommendation by the Planning Division for Approval or Denial of the Project

Decision by the Community Development Director for Approval or Denial of the Project

Decision may be appealed within 15 days to the Planning Commission for consideration

If no appeal is received within 15 days the decision is final for Approval or Denial of the Project